

Regular Meeting Wednesday, December 18, 2019

1. Opening Items
 - A. Pledge of Allegiance

Mrs. Mack called the meeting to order at 5:00 p.m.

Present: Mr. Dosen, Mrs. Kramer, Mr. Pedersen, Mr. Ziegler, Mrs. Mack

Work Session
Regular Meeting
President's Announcements
Recognition/Presentations
Resolution 2019-116 - Other Board Business
Resolution 2019-117 - Other Board Business
Resolution 2019-118 - Other Board Business
Resolution 2019-119 - Other Board Business
Resolution 2019-120 - Other Board Business
Community Communications
Board Member Committee Reports
District Committee Reports
Superintendent's Announcements
Resolution 2019-121 - Superintendent's Consent Agenda
Resolution 2019-122 - Superintendent's Other Business
Resolution 2019-123 - Superintendent's Other Business
Resolution 2019-124 - Superintendent's Other Business
Resolution 2019-125 - Superintendent's Other Business
Resolution 2019-126 - Superintendent's Other Business
Resolution 2019-127 - Treasurer's Consent Agenda
Announcement of Meetings
Adjournment

2. Work Session
 - A. Building Commissioning
 - B. PI Discussion / Bus Camera Discussion

3. Regular Meeting 7:25 p.m.

4. President's Announcements
 - A. Recognition of Board Member Retirement

5. Recognition/Presentations
 - A. Bond Refinancing Discussion / Presentation
 - B. Tennis Court Update

6. Other Board Business
Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-116 as follows:
 - A. School Bus PurchasingROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes
The President declared Resolution 2019-116 adopted.

7. Other Board Business
Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-117 as follows:
 - B. Roof ReplacementROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes
The President declared Resolution 2019-117 adopted.

8. Other Board Business
Motion by Mr. Dosen, seconded by Mr. Ziegler to adopt Resolution 2019-118 as follows:
 - C. Utility Cost Reduction Program PreK-5 Elementary SchoolROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes
The President declared Resolution 2019-118 adopted.

9. Other Board Business
Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-119 as follows:
 - D. Utility Cost Reduction Program HS/ MS Auditorium House LightingROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes
The President declared Resolution 2019-119 adopted.

10. Other Board Business

Motion by Mr. Dosen, seconded by Mr. Pederson to adopt Resolution 2019-120 as follows:

E. Election of President, Pro Tem for Organizational Meeting January 8, 2020 -

Mrs. Mack nominated Mr. Pedersen

F. Superintendent Contract Revision

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-120 adopted.

11. Community Communications

A. Hearing of the Public

12. Board Member Committee Reports

A. Financial Liaison/Audit Committee

B. Permanent Improvement Committee

C. Board Policy Committee

13. District Committee Reports

A. Transportation Appeals Committee

B. Cuyahoga Valley Career Center Report

C. Safety and Security Meeting Report

D. PSO Report

E. Other Board Member Reports

14. Superintendent's Announcements

15. Superintendent's Consent Agenda

Motion by Mr. Ziegler, seconded by Mr. Dosen to adopt Resolution 2019-121 as follows:

A. Certified Recommendations

B. Classified Recommendations

C. Supplemental Recommendations

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-121 adopted.

16. Superintendent's Other Business

Motion by Mr. Dosen, seconded by Mrs. Kramer to adopt Resolution 2019-122 as follows:

A. Softball Trip ~ April 10, 2020-April 17, 2020

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, ABSTAIN

The President declared Resolution 2019-122 adopted.

17. Superintendent's Other Business

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-123 as follows:

B. Robotics Trip ~ January 30, 2020-February 1, 2020

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-123 adopted.

18. Superintendent's Other Business

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-124 as follows:

C. Securly, Web Filtering Contract

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-124 adopted.

19. Superintendent's Other Business

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2019-125 as follows:

D. Koinonia Enterprises Contract

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-125 adopted.

20. Superintendent's Other Business

Motion by Mr. Dosen, seconded by Mrs. Kramer to adopt Resolution 2019-126 as follows:

E. Settlement Agreement

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;

Mrs. Mack, yes

The President declared Resolution 2019-126 adopted.

21. Treasurer's Consent Agenda

Motion by Mr. Dosen, seconded by Mr. Ziegler to adopt Resolution 2019-127 as follows:

A. Financial Statement, November 2019

B. Increase/ Decrease Revenue

C. Transfer of Funds

- D. Adjustment of payment for Busses
- E. Administrative Guidelines Resolution
- F. Administrative Support Guidelines Resolution
- G. Donations

H. Minutes of the 11/18, 11/19, 11/20, 12/2 and 12/5 meetings

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes

The President declared Resolution 2019-127 adopted.

22. Announcement of Meetings

Regular Board Meeting (organizational meeting) - January 8, 2020

23. Adjournment

Motion by Mr. Ziegler, seconded by Mr. Dosen, to adjourn the Regular Meeting at 8:35 p.m.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mr. Pedersen, yes; Mr. Ziegler, yes;
Mrs. Mack, yes

Motion carried.

In addition to written minutes, an audio recording is incorporated and retained in the records of the School Board.

Kathleen Mack, President

Treasurer/CFO

Organizational Meeting Wednesday, January 8, 2020

1. Swearing in of New Board Members
The Interim Treasurer gave the oath of office

Pledge of Allegiance

Mr. Fred Pedersen, President Pro Tem, called the meeting to order at 5:03 p.m.

Present: Mr. Dosen, Mrs. Kramer, Mrs. Mack, Mr. Pedersen, Mrs. Wigman

Resolution 2020-01 - Election of a President for 2020
Oath of Office for Elected President
Resolution 2019-02 - Election of a Vice President for 2020
Oath of Office for Elected Vice President
Resolution 2020-03 – Order of Voting on Motions and Resolutions in 2020
Resolution 2020-04 – Treasurer/CFO's and Superintendent's Business
Resolution 2020-05 – Appointment of Board of Education Representatives
Resolution 2020-06 – Approval of the appointments of Board of Education Representatives
Resolution 2020-07 – Compensation for Meetings in 2020
Resolution 2020-08 – Representation of Legal Counsel
Resolution 2020-09 – 2020 Ohio School Boards Association Membership
Resolution 2020-10 – 2020 Legal Assistance Fund Membership
Resolution 2020-11 – Appointment of Staff to Positions for the 2020 Year
Resolution 2020-12 – Appointment of District Records Officers (DRO) for the 2020 Year
Resolution 2020-13 – Budget for the 2020-2021 Fiscal Year
Resolution 2020-14 – Board of Education Meeting Dates
Adjournment

2. Election of a President for 2020 (accept nominations, no second needed, then ballot)

Mr. Dosen nominated Mrs. Mack. There were no other nominations.

Motion by Mr. Dosen to close nominations and cast a unanimous ballot for Mrs. Mack as Board President for 2020.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, ABSTAIN; Mr. Pedersen, yes; Mrs. Wigman, no
Mr. Dosen declared Mrs. Mack President for 2020 and declared Resolution 2020-01 adopted.

Mr. Pedersen will now turn the meeting over to the new President.

3. Election of a Vice President for 2020 (accept nominations, no second needed, then ballot)

Mr. Pedersen nominated Mr. Dosen. Mrs. Wigman nominated Mr. Pedersen

Motion to close nominations and cast a ballot for Mr. Dosen as Board Vice President for 2020.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mr. Wigman, no
The President declared Mr. Dosen Vice President for 2020 and declared Resolution 2020-02 adopted.

4. Order of Voting on Motions and Resolutions in 2020

Motion by Mr. Dosen, seconded by Mrs. Kramer to adopt Resolution 2020-03 as follows:

The member order of voting shall be in alphabetical order with the exception of the Board President who will vote last.

Robert's Rules of order shall prevail in determining all board meeting procedural questions.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes
The President declared Resolution 2020-03 adopted.

5. Treasurer/CFO's and Superintendent's Business

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-04 as follows:

Resolution to authorize the Treasurer/CFO of the Brecksville-Broadview Heights City School District to request the County/Auditor to advance taxes from the proceeds of the tax levies pursuant to Section 321.340 of the Ohio Revised Code to meet current expenses as needed during the period of January 1, 2020 through December 31, 2020;

AND FURTHER RESOLVE under authority of Section 3313.20 O.R.C. that the Board dispense with approval of ordinary bills for purchases made under authority of the annual appropriations resolution and permit payment as seems advantageous;

AND FURTHER RESOLVE to waive the reading of the minutes of the Board as authorized by Amended House Bill #424;

AND FURTHER RESOLVE to authorize the Treasurer/CFO to invest funds that are not needed to meet current expenditures - Section 135.09 O.R.C.;

AND FURTHER RESOLVE to authorize the Treasurer/CFO to make appropriate modifications to the budgets as necessary during the year. A listing of

modifications will be submitted to the Board monthly;

AND FURTHER RESOLVE to appropriate a \$20,000 Service Fund account in 2020;

AND FURTHER RESOLVE to authorize the Treasurer/CFO to approve blanket purchase orders up to a maximum of \$10,000;

AND FURTHER RESOLVE to grant authority to the Superintendent to excuse teachers and other school employees for attendance at,

and provide all approved expenses for, professional and/or in-service meetings in 2020;

AND FURTHER RESOLVE to grant authority to the Superintendent to approve expenditures for those fringe benefits and other forms of non-salary remuneration not prohibited by statute, per formal opinion OAG81-052 clarifying the issue of non-salary remuneration for public employers;

AND FURTHER RESOLVE to grant the Superintendent or her designee authority to file applications for all projects considered desirable for the Brecksville-Broadview Heights City School District;

AND FURTHER RESOLVE to authorize the signature of the Treasurer/CFO, or the facsimile thereof, to be used on all checks and warrants;

AND FURTHER RESOLVE to designate the Superintendent or her designee as purchasing agent for the Brecksville-Broadview Heights City Schools for 2020;

AND FURTHER RESOLVE to recognize the Superintendent or her designee as the appeal officer for out-of-school suspensions;

AND FURTHER RESOLVE to authorize the Superintendent to hire personnel and accept resignations on behalf of the board, pending final board approval;

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-04 adopted.

6. Appointment of Board of Education Representatives and Committees on behalf of the District Administrative Leadership.

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-05 as follows:

Representative to Transportation Appeals Committee - Mr. Dosen

Representatives to the PSO Council - Mr. Pedersen

Legislative Liaison Person to the Ohio School Boards Association -Mrs. Kramer

Liaison Person(s) for Brecksville Council – Rotating - Mrs. Mack/Mrs. Kramer/Mr. Pedersen

Liaison Person(s) for Broadview Heights Council – Rotating - Mr. Dosen/Mrs. Wigman

Representative to Broadview Heights Tax Incentive Review Council (TIRC) - Mr. Dosen

Representative to Brecksville-Broadview Heights Schools Foundation - Mrs. Wigman

Representatives to Partnership for a Healthy Community - Mr. Pedersen/Mrs. Wigman

Representative to the Yuletide Hunger Program - Mrs. Mack

Representative to the Wellness Committee - Mrs. Wigman

Representative to the Cuyahoga Valley Career Center - Mr. Jim Gilbride

Representative to Community Awareness and Prevention Association (CAPA) - Mrs. Wigman

Representative to the Safety & Security Committee - Mr. Pedersen/Mrs. Kramer

Liaison Person for Business Advisory Council (Mr. Coad through NEO ESC) - Mr. Dosen

Resolution to approve the appointments of Board of Education Representatives and Committees on behalf of the District Administrative Leadership.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-05 adopted.

7. Appointment of Board of Education Representatives on behalf of the Board of Education.

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-06 as follows:

Financial Liaison/Audit Committee Person(s) - Mr. Dosen/Mrs. Mack

Representatives to Permanent Improvement Committee - Mr. Dosen/Mrs. Kramer

Representatives to the Board Policy Committee - Mr. Pedersen/Mrs. Mack

Resolution to approve the appointments of Board of Education Representatives on behalf of the Board of Education.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-06 adopted.

8. Compensation for Meetings 2020

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-07 as follows:

Resolve to set Board Member compensation at \$100 per meeting, effective January 1, 2020.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-07 adopted.

9. Representation of Legal Counsel

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-08 as follows:

Resolution to approve the following list of firms for legal counsel representation during 2020:

Ennis Britton Co., LPA

Fisher & Phillips, LLP

Gingo & Bair Law, LLC

Pepple and Waggoner Ltd.

Roetzel & Andress LPA

Smith, Peters & Kalail Co., LPA

Squire Patton Boggs LLP

Walter Haverfield, LLP

The Riley Law Firm LLC

Additionally, the Ohio School Boards Association (OSBA) and the law directors for the cities of Brecksville and Broadview Heights may be used as appropriate.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-08 adopted.

10. 2020 Ohio School Boards Association Membership

Motion by Mr. Pedersen, seconded by Mr. Dosen to adopt Resolution 2020-09 as follows:

Resolution to approve membership in the Ohio School Boards Association for the calendar year 2020 in the amount of \$8,977.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-09 adopted.

11. 2020 Legal Assistance Fund Membership

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-10 as follows:

Resolution to approve Legal Assistance Fund participation with Ohio School Boards Association for the calendar year 2020 in the amount of \$250.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-10 adopted.

12. Appointment of Staff to Positions for the 2020 Year

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-11 as follows:

Title IX Hearing Officer: Director of Human Resources

Anti-Harassment Grievance Officer: Director of Human Resources and Director of Pupil Services

504/ADA Compliance Officer: Director of Pupil Services and Director of Human Resources

Civil Rights Coordinator: Director of Pupil Services

Homeless Liaison: Director of Pupil Services

Suspension Appeal Officer, as designee for the Board: Director of Human Resources

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-11 adopted.

13. Appointment of District Records Officers (DRO) for the 2020 Year

Motion by Mr. Dosen, seconded by Mrs. Kramer to adopt Resolution 2020-12 as follows:

Resolve to recognize the Treasurer/CFO and the Director of Pupil Services as District Records Officers (DRO).

The individuals in this position will also serve as the Brecksville-Broadview Heights Board of Education designees in this regard.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-12 adopted.

14. Alternative Tax Budget Fiscal Year 2021

Motion by Mr. Dosen, seconded by Mr. Pedersen to adopt Resolution 2020-13 as follows:

1. Public Hearing on the Proposed Alternative Tax Budget Fiscal Year 2021

2. Resolution Adopting the Alternative Tax Budget for the Fiscal Year 2021

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-13 adopted.

15. 2020 Board of Education Meeting Dates

Motion by Mr. Dosen, seconded by Mrs. Kramer to adopt Resolution 2020-14 as follows:

A. 2019 Board of Education Meeting Dates

B. Change of meeting location to High School Media Center

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

The President declared Resolution 2020-14 adopted.

16. Adjournment

Motion by Mr. Pedersen, seconded by Mr. Dosen, to adjourn Organizational Meeting at 5:58 p.m.

ROLL CALL: Mr. Dosen, yes; Mrs. Kramer, yes; Mrs. Mack, yes; Mr. Pedersen, yes; Mrs. Wigman, yes

Motion carried.

In addition to written minutes, an audio recording is incorporated and retained in the records of the School Board.

Kathleen Mack, President

Treasurer/CFO